SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Criminal Appeal No. 370 of 1996

CNR: SCIN010003701996

Date: 21 July, 1999

Citation: (1999) 6 SCC 172

CORAM: Hon'ble A.S. Anand, C.J., S.B. Majmudar, Sujata V. Manohar, K. Venkataswami

Petitioner: State of Punjab

- VERSUS -

Respondent: Baldev Singh & Others

DOMAIN: NARCOTICS LAW & SEARCH SAFEGUARDS

STATUS: Good Law (Constitution Bench Landmark)

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

It is an imperative requirement of Section 50 that the suspect must be made aware of his legal right to be searched before a Gazetted Officer or a Magistrate. Non-compliance with this mandatory obligation renders the recovery suspect and vitiates conviction.

STATUTES APPLIED: Section 50 NDPS, Section 42 NDPS

DISPOSITION: ACQUITTAL FOR NON-COMPLIANCE WITH SECTION 50 AFFIRMED

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench held that informing the accused of their right to be searched before a Gazetted Officer or Magistrate under Section 50 NDPS is mandatory, and failure to comply vitiates the recovery and trial.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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